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IN THE CIRCUIT COURT FOR THE SIXTEENTH JUDICIAL CIRCUIT
KANE COUNTY, ILLINOIS

DAVID BYERS,

Petitioner

vs.

PAULETTA DONATELLO,

Respondent

No. 14 F 318

James M. Hiltz
Clerk of the Circuit Court
Kane County, IL

JUN 16 2016

FILED 050
ENTERED

AGREED ORDER

THIS MATTER having come before the Court for hearing on the plenary order of protection, the parties, each represented by counsel, have reached agreement regarding the request for order of protection, visitation and child support as follows:

THE PARTIES STIPULATE THAT:

- 1) ~~Petitioner does not currently have a valid driver's license.~~

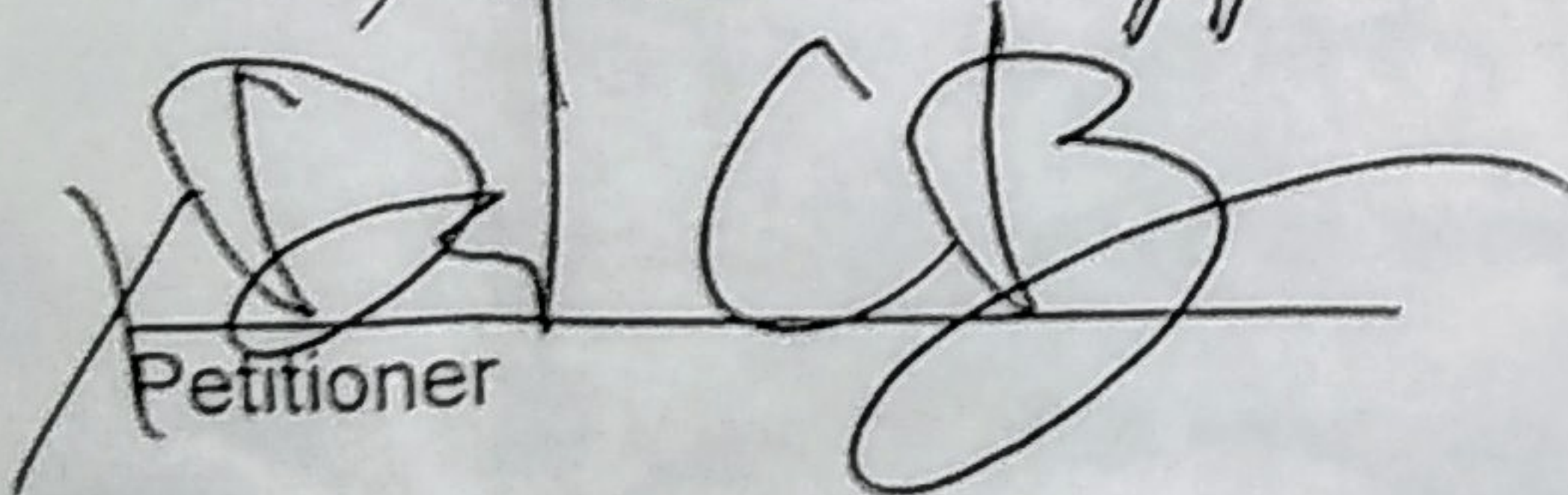
IT IS ORDERED:

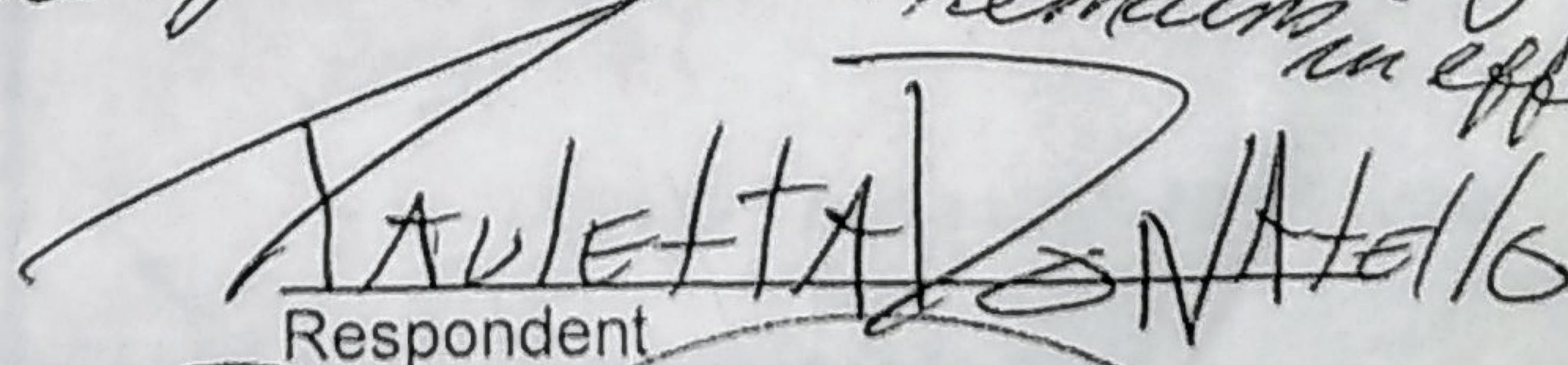
- 1) Petitioner, David Byers, shall not abuse, harass, or stalk Respondent, Pauletta Donatello, as defined by the Illinois Domestic Violence Act.
- 2) Petitioner shall follow all terms of his sentences in 14CF1932 and 14CM1790 (Kane);
- 3) The Petitioner shall have parenting time with the minor child as follows:
 - a. Twenty four hours of parenting time each week, schedule as agreed by the parties beginning June 18, 2016, and
 - b. Any other times by agreement of the parties, if reduced to writing.
- 4) Parenting time exchange shall be arranged by Petitioner who may select any person acceptable to Respondent to transport the child. If he is unable to arrange transportation, he must contact Respondent no later than 24 hours in advance. If Respondent is able, she may herself transport the child but if not, then parenting time shall be forfeited for that period. Once Petitioner is legally licensed, he may transport the child himself.
- 5) Petitioner must comply with the rules outlined below during all periods of parenting time. They are as follows:
 - a. No discussion with the minor child regarding any legal proceedings involving the parties;

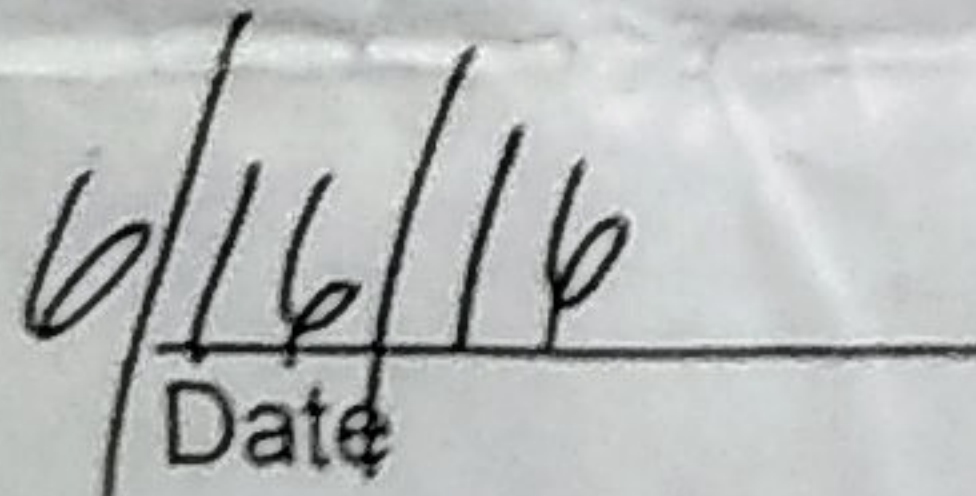
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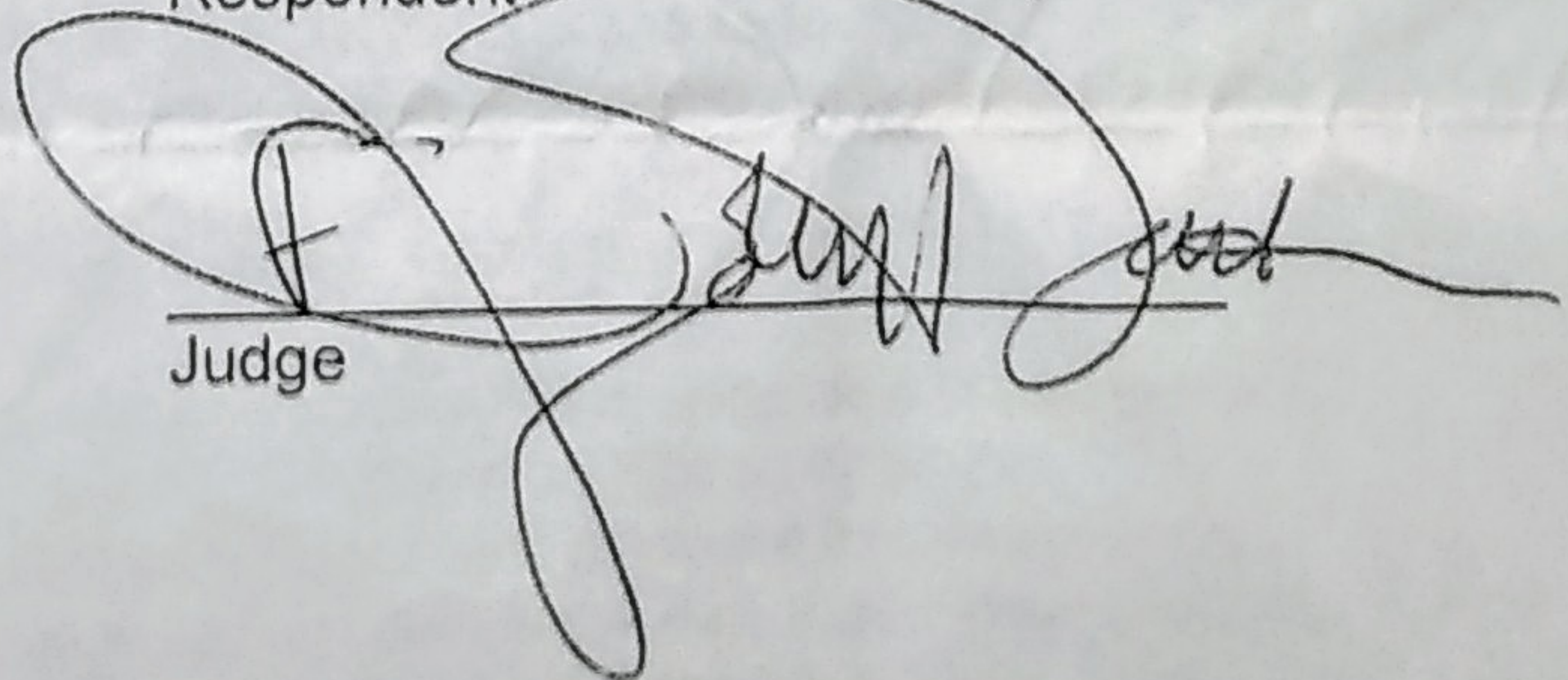
- b. ~~No discussion with the child about the custodial parent's activities;~~
c. No use of alcohol or illegal drugs, during or for 12 hours prior to, visitation;
d. No abusive language;
e. ~~No hitting, striking, or physical discipline of the child;~~
f. ~~No threatening behavior.~~
- 6) The parties may ONLY communicate regarding issues directly related to parenting time, transportation, or the care of the minor child and then ONLY via text or email, *or any other subject*
- 7) Each time Petitioner obtains new housing, he must notify Respondent and give her *then mutually agree* adequate opportunity to see the new living arrangements prior to the next scheduled parenting time. Any objections to those arrangements shall be made by motion.
- 8) If Petitioner violates the sentencing requirements in 14CM1932 or 14CM1790, *As set by COURT order.* Respondent may terminate Petitioner's parenting time at her sole discretion. Thereafter, Petitioner may file a motion should he seek to reinstate his parenting time.
- 9) ~~Child support is modified based on Petitioner's current earnings: Beginning 6/17/16, Petitioner shall pay ***** for regular support and **** for arrears for a total of *** weekly. Payment of arrearage amount specified herein shall continue until the total arrearage accumulated since the 12/5/14 order is paid in full.~~
- 10) Child support arrearage for periods prior to 12/5/2014 and contribution to past, present, and future day care and medical expenses is reserved, *no return for future liability for child care to account going forward*
- 11) The interim Order of Protection shall lapse on its own terms.
- 12) Prairie State Legal Services withdraws *instantly* by agreement from both 14F318 and 15OP512.

13) *Child support order previously entered remains in effect.*


Petitioner


Respondent


Date


Judge

14F318

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